

26CHCV01392 26CHCV01392

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-08-18

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DEFENDANTS' MOTION TO STRIKE

Motion filed on June 8, 2026.

MOVING PARTY: FCA US LLC and Van Nuys Chrysler Dodge Jeep Ram

RESPONDING PARTY: Sophia Israel

NOTICE: OK.

RELIEF REQUESTED: Defendants seek an order striking Plaintiff's requests for punitive damages and civil penalties.

RULING: Granted in part.

BACKGROUND

Sophia Israel (Plaintiff) filed the Complaint on April 6, 2026 against FCA US LLC (FCA) and Van Nuys Chrysler Dodge Jeep Ram (Van Nuys) (collectively, Defendants). The Complaint asserts causes of action for violation of Civil Code section 1793.2, subdivisions (d), (b), and (a)(3), breach of the implied warranty of merchantability, negligent repair, and fraudulent inducement by concealment.

Defendants filed the motion to strike on June 8, 2026, supported by the declaration of Armando Lopez. Plaintiff filed an opposition on August 4, 2026. Defendants filed a reply on August 11, 2026.

Defendants also filed a notice of Plaintiff's non-opposition to a demurrer on August 11, 2026. Although Defendants' motion to strike memorandum refers to a concurrently filed demurrer, no demurrer appears in the Court's file. The Court therefore rules only on the motion to strike.

LEGAL STANDARD

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id., § 436(b).) The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Id. § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Id. § 437.) In ruling on a motion to strike, the Court reads the allegations as a whole, in context, and assumes their truth. (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) "When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend." (Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768.)

A demand for judgment requesting relief not supported by the allegations of the complaint is irrelevant matter. (Code Civ. Proc., § 431.10, subd. (b)(3).) Failure to state facts sufficient to constitute a cause of action is a ground for demurrer, but not for a motion to strike under Code of Civil Procedure section 436. (Ferraro v. Camarlinghi (2008) 161 Cal.App.4th 509, 529.) Conclusory allegations will not be stricken where they are supported by other factual allegations in the complaint. (Perkins v. Superior Court (1981) 117 Cal.App.3d 1, 6.)

DISCUSSION

Defendants move to strike Plaintiff's requests for civil penalties and punitive damages.

Civil Penalties

Code of Civil Procedure section 871.24 requires a consumer seeking civil penalties under Civil Code section 1794, subdivision (c), to provide written notice at least 30 days before commencing the action. The notice must identify the consumer and the vehicle identification number, provide a brief summary of the repair history and problems with the vehicle, and demand repurchase or replacement. The consumer must possess the vehicle when the notice is sent and maintain possession for the period prescribed by the statute. (Code Civ. Proc., § 871.24, subds. (a) through (d), (g).) If the consumer provides the required notice and the manufacturer fails to comply with Code of Civil Procedure section 871.24, subdivision (e), the consumer may commence an action seeking civil penalties under Civil Code section 1794, subdivision (c). (Id., subd. (h).)

Here, Defendants argue that Plaintiff does not allege compliance with Code of Civil Procedure section 871.24. Plaintiff expressly alleges that she made a request for repurchase of the Subject Vehicle "compliant with the requirements of the CCP 871.24" and that FCA failed to timely comply with its obligations. (Compl. ¶ 15.) Plaintiff further alleges that she requested a buyback or restitution on January 13, 2026, more than 30 days before this action was filed, and that FCA failed to provide restitution. (Compl. ¶ 31.)

Defendants contend in reply that Plaintiff must separately plead the contents and manner of transmission of the notice, her continued possession of the vehicle, and FCA's response. Defendants cite no authority requiring each statutory component to be separately pleaded where Plaintiff alleges compliance and supports that allegation with the date and nature of the request. Reading Plaintiff's allegations as a whole and assuming their truth, Defendants have not shown that Plaintiff's request for a civil penalty under Civil Code section 1794, subdivision (c), is improper on the face of the Complaint.

Code of Civil Procedure section 871.24 addresses civil penalties under Civil Code section 1794, subdivision (c). Plaintiff also seeks a civil penalty under Civil Code section 1794, subdivision (e), in the alternative. (Compl. ¶¶ 41-42.) Defendants do not separately establish that the alternative request is improper. The motion to strike subparagraph e of the prayer is denied.

Punitive Damages against FCA

Civil Code section 3294 permits punitive damages in an action for the breach of an obligation not arising from contract where the defendant is guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) "Fraud" means "an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Id., subd. (c)(3).) Fraudulent acts of concealment may support punitive damages. (Werschull v. United California Bank (1978) 85 Cal.App.3d 981, 1004.) With respect to a corporate employer, the act of fraud, authorization, or ratification must be on the part of an officer, director, or managing agent. (Civ. Code, § 3294, subd. (b).)

The Song-Beverly Act provides for civil penalties, but not punitive damages. (Covert v. FCA USA, LLC (2022) 73 Cal.App.5th 821, 828, fn. 3.) In Anderson, the court held that "the recovery of both punitive damages and civil penalties is prohibited when the underlying conduct for both remedies is the same conduct, i.e., identical conduct." (Anderson v. Ford Motor Co. (2022) 74 Cal.App.5th 946, 971.) The court nonetheless upheld both remedies where the punitive damages were based on the manufacturer's presale fraud and concealment, while the Song-Beverly civil penalty was based on its willful postsale failure to replace the vehicle or make restitution. (Id. at pp. 971-973.)

Here, Plaintiff alleges that, before she acquired the Subject Vehicle, FCA knew its 8-speed transmission was defective and could cause hesitation, delayed acceleration, harsh shifting, jerking, shuddering, surging, inability to control the vehicle's speed, and transmission failure. (Compl. ¶¶ 63-65.) Plaintiff alleges FCA acquired this knowledge through pre-production and post-production testing, consumer complaints, warranty data, testing, and repair and replacement data unavailable to consumers. (Compl. ¶ 65.) Plaintiff further alleges that FCA and its directors and officers concealed and failed to disclose the defect before and at the time of sale, that FCA knowingly and intentionally concealed the information, and that Plaintiff would not have purchased the vehicle had the defect been disclosed. (Compl. ¶¶ 67, 70-71.) These allegations concern presale concealment, rather than FCA's alleged later failure to comply with its Song-Beverly obligations.

Defendants separately argue that Plaintiff fails to allege corporate authorization or ratification under Civil Code section 3294, subdivision (b). Section 3294, subdivision (b), however, permits corporate liability where the act of fraud itself is on the part of an officer, director, or managing agent. Defendants themselves rely on the statutory requirement that "the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." Plaintiff alleges that FCA and its "directors, officers, employees, affiliates, and/or agents" concealed and failed to disclose the Transmission Defect before and at the time of sale. (Compl. ¶ 67.) Plaintiff similarly alleges that the material facts were concealed or not disclosed by FCA and its directors and officers. (Compl. ¶ 71.)

Reading the allegations as a whole and assuming their truth, Plaintiff alleges intentional concealment of a material fact known to FCA with the intent to cause Plaintiff to purchase a vehicle she otherwise would not have purchased. Read together with Plaintiff's factual allegations concerning FCA's presale knowledge and concealment, Defendants have not shown that the punitive damages request is improper under Civil Code section 3294, subdivision (b), on the face of the Complaint. The motion to strike punitive damages against FCA is denied. The Court does not determine whether the sixth cause of action otherwise states a claim for fraudulent concealment because no demurrer is before the Court.

Punitive Damages Against Van Nuys

Plaintiff alleges that Van Nuys owed her a duty to use ordinary care and skill in storing, preparing, and repairing the Subject Vehicle and breached that duty by failing to properly store, prepare, and repair it. (Compl. ¶¶ 56-60.) Plaintiff alleges no intentional misrepresentation, deceit, or concealment by Van Nuys and no other facts showing oppression, fraud, or malice. The allegations therefore do not support punitive damages against Van Nuys under Civil Code section 3294. The motion is

granted with leave to amend as to punitive damages against Van Nuys.

CONCLUSION

The motion to strike is granted with 20 days' leave to amend to the extent Plaintiff seeks punitive damages against Van Nuys.
The motion is otherwise denied.

Defendants to give notice.